

Leviathan, Thomas Hobbes, 1651

About State of Nature

Hereby it is manifest that, during the time men live without a common power to keep them all in awe, they are in that condition which is called war, and such a war as is of every man against every man. And therefore, if any two men desire the same thing which nevertheless they cannot both enjoy, they become enemies; and, in the way to their end, which is principally their own conservation and sometimes their delectation only, endeavor to destroy or subdue one another. [Hence, life in the state of nature is]“nasty, poor, brutish, and short.”

About Government

The only way to govern... is to confer all their power and strength upon one man, or upon one assembly of men, that may reduce all their wills, by plurality of voices, unto one will: which is as much as to say, to appoint one man, or assembly of men, to bear their person; and every one to own and acknowledge himself to be author of whatsoever he that so beareth their person shall act, or cause to be acted, in those things which concern the common peace and safety; and therein to submit their wills, every one to his will, and their judgments to his judgment. This is more than consent, or concord; it is a real unity of them all in one and the same person, made by covenant of every man with every man, in such manner as if every man should say to every man: I authorize and give up my right of governing myself to this man, or to this assembly of men, on this condition; that thou give up, thy right to him, and authorize all his actions in like manner.

Charles Montesquieu: Book 4 from The Spirit of the Laws, 1748

Charles Montesquieu (1689–1755) was the president of the parlement of Bordeaux and a leading political philosopher of his day. The influence of John Locke can be seen in much of his work. In The Spirit of the Laws, Montesquieu compared republican, monarchical, and despotic government.

Chapter 5

On education in republican government

It is in republican government that the full power of education is needed. Fear in despotic governments arises of itself from threats and chastisements; honor in monarchies is favored by the passions and favors them in turn; but political virtue is a renunciation of oneself, which is always a very painful thing.

One can define this virtue as love of the laws and the homeland. This love, requiring a continuous preference of the public interest over one's own, produces all the individual virtues; they are only that preference.

This love is singularly connected with democracies. In them alone, government is entrusted to each citizen. Now government is like all things in the world; in order to preserve it, one must love it.

One never hears it said that kings do not love monarchy or that despots hate despotism.

Therefore, in a republic, everything depends on establishing this love, and education should attend to inspiring it. But there is a sure way for children to have it; it is for the fathers themselves to have it.

One is ordinarily in charge of giving one's knowledge to one's children and even more in charge of giving them one's own passions.

If this does not happen, it is because what was done in the father's house is destroyed by impressions from the outside.

It is not young people who degenerate; they are ruined only when grown men have already been corrupted.

Two Treatises of Government, John Locke, 1690

To understand political power, we must consider the condition in which nature puts all men. It is a state of perfect freedom to do as they wish and dispose of themselves and their possessions as they think fit, within the bounds of the laws of nature. They need not ask permission or the consent of any other man. The state of nature is also a state of equality. No one has more power or authority than another. Since all human beings have the same advantages and the use of the same skills, they should be equal to each other. The state of nature has a law of nature to govern it. Reason is the law. It teaches that all men are equal and independent, and that no one ought to harm another in his life, liberty, or possessions. All men are made by one all-powerful and wise Maker. They are all servants of one Master who sent them into the world to do His business. He has put men naturally into a state of independence, and they remain in it until they choose to become members of a political society.

If a man in the state of nature is free, if he is absolute lord of his own person and possessions, why will he give up his freedom? Why will he put himself under the control of any person or institution? The obvious answer is that the rights in the state of nature are constantly exposed to the attacks of others. Since every man is equal and since most men do not concern themselves with equity and justice, the enjoyment of rights in the state of nature is unsafe and insecure. Hence each man joins in society with others to preserve life, liberty, and property.

Since men hope to preserve their property by establishing a government, they will not want that government to destroy this objective. When legislators (*lawmakers*) try to destroy or take away the property of the people, or try to reduce them to slavery, they put themselves into a state of war with the people who can then refuse to obey the laws. When legislators try to gain or give someone else absolute power over lives, liberties, and property of the people, they abuse the power which the people had put into their hands. It is then the privilege of the people to establish a new legislature to provide for their safety and security. These principles also hold true for the executive who helps to make laws and carry them out.

Perhaps some will say that the people are ignorant and discontented (*unhappy*) and that a government based on their unsteady opinion and uncertain humor will be unstable. They might argue that no government can exist for long if the people may set up a new legislature whenever they do not like the old one. But people do not easily give up their old forms of government. In England, for example, the unwillingness of the people to throw out their old constitution has kept us to, or brought us back to, our old legislature of king, lords, and commons.

The Social Contract, Jean Jacques Rousseau, 1762

{9}I SUPPOSE men to have reached the point at which the obstacles in the way of their preservation in the state of nature show their power of resistance to be greater than the resources at the disposal of each individual for his maintenance in that state. That primitive condition can then subsist no longer; and the human race would perish unless it changed its manner of existence.

{10}But, as men cannot engender new forces, but only unite and direct existing ones, they have no other means of preserving themselves than the formation, by aggregation, of a sum of forces great enough to overcome the resistance. These they have to bring into play by means of a single motive power, and cause to act in concert.

{11}This sum of forces can arise only where several persons come together: but, as the force and liberty of each man are the chief instruments of his self-preservation, how can he pledge them without harming his own interests, and neglecting the care he owes to himself? This difficulty, in its bearing on my present subject, may be stated in the following terms:

{12}"The problem is to find a form of association which will defend and protect with the whole common force the person and goods of each associate, and in which each, while uniting himself with all, may still obey himself alone, and remain as free as before." This is the fundamental problem of which the Social Contract provides the solution.

{17}If then we discard from the social compact what is not of its essence, we shall find that it reduces itself to the following terms:

{18}"Each of us puts his person and all his power in common under the supreme direction of the general will, and, in our corporate capacity, we receive each member as an indivisible part of the whole."

{19}At once, in place of the individual personality of each contracting party, this act of association creates a moral and collective body, composed of as many members as the assembly contains votes, and receiving from this act its unity, its common identity, its life and its will. This public person, so formed by the union of all other persons . . . [is called] Sovereign when active.